VENDOR SERVICE CONTRACT

Lantern Valley Health Center | Sacramento, CA

Owner	Lantern Valley Health Center Owner LLC
Contractor	PolarClean Pressure Washing
Services	exterior cleaning
Property	Lantern Valley Health Center
Effective Date	March 1, 2022

1. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform exterior cleaning at Lantern Valley Health Center in accordance with the specifications attached hereto. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

2. Term and Termination. This Contract commences on the Effective Date for a term of 25 months and may be terminated by either party on thirty days' written notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

3. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

4. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

5. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

6. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

7. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

8. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

9. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform exterior cleaning at Lantern Valley Health Center in accordance with the specifications attached hereto. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

10. Term and Termination. This Contract commences on the Effective Date for a term of 34 months and may be terminated by either party on thirty days' written notice. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

11. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

12. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

13. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

14. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

15. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

16. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

17. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform exterior cleaning at Lantern Valley Health Center in accordance with the specifications attached hereto. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

18. Term and Termination. This Contract commences on the Effective Date for a term of 42 months and may be terminated by either party on thirty days' written notice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

19. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

20. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

21. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

22. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

23. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

24. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

25. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform exterior cleaning at Lantern Valley Health Center in accordance with the specifications attached hereto. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

26. Term and Termination. This Contract commences on the Effective Date for a term of 46 months and may be terminated by either party on thirty days' written notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

27. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

28. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

29. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

30. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

31. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

32. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

33. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform exterior cleaning at Lantern Valley Health Center in accordance with the specifications attached hereto. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

34. Term and Termination. This Contract commences on the Effective Date for a term of 22 months and may be terminated by either party on thirty days' written notice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

35. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

36. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

37. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

38. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

39. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

40. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

41. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform exterior cleaning at Lantern Valley Health Center in accordance with the specifications attached hereto. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

42. Term and Termination. This Contract commences on the Effective Date for a term of 25 months and may be terminated by either party on thirty days' written notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

43. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

44. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

45. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

46. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

47. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

48. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

49. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform exterior cleaning at Lantern Valley Health Center in accordance with the specifications attached hereto. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

50. Term and Termination. This Contract commences on the Effective Date for a term of 33 months and may be terminated by either party on thirty days' written notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

51. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

52. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

53. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

54. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

55. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

56. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

57. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform exterior cleaning at Lantern Valley Health Center in accordance with the specifications attached hereto. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

58. Term and Termination. This Contract commences on the Effective Date for a term of 6 months and may be terminated by either party on thirty days' written notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

59. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

60. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

61. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

62. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

63. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

64. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

65. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform exterior cleaning at Lantern Valley Health Center in accordance with the specifications attached hereto. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

66. Term and Termination. This Contract commences on the Effective Date for a term of 14 months and may be terminated by either party on thirty days' written notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

67. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

68. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

69. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

70. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

71. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

72. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

73. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform exterior cleaning at Lantern Valley Health Center in accordance with the specifications attached hereto. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

74. Term and Termination. This Contract commences on the Effective Date for a term of 21 months and may be terminated by either party on thirty days' written notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

75. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

76. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

77. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

78. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

79. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

80. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

81. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform exterior cleaning at Lantern Valley Health Center in accordance with the specifications attached hereto. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

82. Term and Termination. This Contract commences on the Effective Date for a term of 42 months and may be terminated by either party on thirty days' written notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

83. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

84. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Lantern Valley Health Center Owner LLC

By: Elena Lopez Title: President Date: 03/01/2022

_____

Silverline Dermatology

By: Maria Dixon Title: Manager Date: 03/01/2022

Exhibit A - Property

Lantern Valley Health Center, 3501 Centennial Way, Sacramento, CA 77833. Parcel containing approximately 4.22 acres, together with all improvements thereon.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only